

June 30, 2022

MEMORANDUM

Date: June 30, 2022
To: Honorable Lisa Herbold, Chair, Public Safety and Human Services Committee
From: Calvin W. Goings, Director, Finance and Administrative Services
Re: Response to Statement of Legislative Intent SLI FAS-003-B-001 (animal control reporting in City parks)

Seattle Animal Shelter Report on Challenges and Opportunities to Increase Animal Control Patrolling in City Parks

Section 1. Introduction

In the 2022 budget process, the Council adopted a Statement of Legislation Intent with the title “Request that FAS report on increased efficiencies in animal control patrolling.” The Council’s description of this SLI is as follows:

This Statement of Legislative Intent (SLI) would request that the Department of Finance and Administrative Services (FAS) provide a report on potential increases in efficiencies that would increase the time spent by, and total number of Animal Control Officer II positions dedicated to, the enforcement of relevant City ordinances in City parks.

The report should include sufficient information to allow Council to evaluate potential means to increase parks enforcement by Animal Control Officers while minimizing negative impacts on other duties, including those benefitting homeless and underserved communities and responding to animal cruelty and aggressive animal issues. The report should also include an evaluation of the potential outcomes of increased use of informational materials and expansion of community-based services. Overall, the report would be useful to the extent that it helps inform future Council decisions supporting better enforcement of leash and scoop laws in City parks.

The report should be submitted to the Chair of the Public Safety and Human Services Committee, or successor committee, and the Central Staff Director, by June 30, 2022.

The information provided in the Seattle Animal Shelter’s Statement of Legislative Intent Response report answers the questions put forward by Council and gives more background on the challenges and opportunities related to enforcement of leash and scoop laws in Seattle city parks.

Section 2. Background

The Seattle Animal Shelter has 40 employees. Beyond veterinarians and shelter management, the vast majority of staff are either Animal Control Officer Is (ACO Is) or Animal Control Officer IIs (ACO IIs). The responsibilities of each group are noted below.

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June 30, 2022

ACO I

The Animal Care Unit (ACU) is composed of eight ACO I positions, including one underfilled ACO II. The ACO Is are responsible for the daily care and routing of animals at the shelter. They also manage animal adoptions, surrenders and redemptions as well as the phone and email communications related to these tasks for the seven-day per week operation. Because the shelter is a seven day-per-week operation, this results in four ACO Is at any given time caring for animals in the shelter.

ACO II

The Field Services Unit (FSU) of the Seattle Animal Shelter (SAS) is composed of 14 ACO II positions with one underfilled as an ACO I and one vacancy. Currently, there are 12 full-time ACO IIs who are responsible for all animal control authority and activity for SAS. ACO IIs have special commissions that enable them to issue citations, serve warrants, testify on criminal cases, retrieve Department of Licensing data and access properties marked "no trespassing." This unit responds to animal related complaints, including aggressive animals, animal cruelty, wildlife, outreach to homeless encampments and neighborhood disputes and is also responsible for patrolling the City's parks for violations. They work closely with the City Attorney's Office (CAO) and the Seattle Police Department (SPD) to manage cases, prosecute, investigate and serve warrants (when SPD backup is needed). SAS is a seven-day per week operation with 10-hour shifts resulting in a maximum of six ACO IIs on duty at any one time.

One ACO II per day is assigned as an in-house dispatcher, leaving four to six ACO IIs to respond to requests for assistance in neighborhoods, homeless outreach support and parks patrols. On days with a full complement of seven staff members, this accounts for one ACO II assigned as an in-house dispatcher, an ACO II assigned to each neighborhood patrol areas in the North, Central and South and Southwestern parts of the city and a pair of officers assigned to patrol parks.

The ACO II also provides support to the shelter for cleaning, feeding and care of the animals in times of staffing need. On days with fewer than seven ACO IIs, SAS must balance limited staff between neighborhood responses, parks patrols and homelessness assistance.

In 2021, when FSU staff were in the field they responded to the following calls for service:

FSU 2021 Response Types	Response Count	% of Total Responses
Field Service Calls for Citywide Leash and Scoop Law Violations, Dead Animal Pickups, etc.	1,944	35%
Parks Patrols	1,850	33%
Cruelty Investigations	741	13%
Aggressive Animal Investigations	534	10%
Wildlife Calls	527	9%
Total	5,596	100%

ACO IIs are assigned to patrol City parks in pairs for a 10-hour shift, dedicating 80 hours per week. ACO IIs work together for safety, and because it's likely they will need to contact multiple people simultaneously who are running their dogs off leash. The ACO IIs have worked in cooperation with SPR Rangers to enforce leash, scoop and licensing requirements as outlined in the Seattle Municipal Code.

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June 30, 2022

Officers respond to requests to patrol specific parks and conduct routine patrols of parks in an assigned patrol area. Patrol areas are rotated daily to ensure coverage of the North, Central, and South and Southwest districts of the city. In 2021, ACO IIs patrolled 344, or 70%, of the city's 489 parks. While not all parks are patrolled by ACO IIs each year, the ones that are patrolled are those identified by residents or SPR site staff.

Section 3. Parks Patrol Challenges

Recently ACO IIs have faced an increase in resistance to their presence in parks. Residents regularly ignore officers' requests for identification or simply walk away or flee when contacted. ACO IIs are routinely verbally berated and belittled (see Attachment A). Seattle Police Officers have historically assisted ACO IIs in obtaining identification from resistant residents to issue an infraction for violating the Seattle Municipal Code. Recently, though, police officers have been unable to assist and often interpret their role as observational. ACO IIs are unable to identify pet owners and therefore cannot issue infractions. Instead, a verbal warning with no record of the violator's information is issued. Without identification, there is no way to know if the individual is a repeat violator of the leash law requirement and therefore should receive an infraction instead of a warning.

Further, word is spreading amongst pet owners through social media platforms like Nextdoor and Facebook (see Attachment B) that there are no consequences of ignoring ACO IIs. As a result, there is an increase in off leash activity in Seattle parks and ACO IIs are overwhelmed by increasingly aggressive and verbally abusive pet owners.

SAS has adjusted its approach to park code violations by issuing verbal warnings on all first contacts with education as to the negative impacts off leash dogs have on the park grounds. ACO IIs try to obtain identification through education with a warning of a possible infraction for future violations of the SMC pertaining to the leash law in Parks.

Section 4. Options for Improvements and Efficiencies

Achieving compliance with leash and scoop laws in City parks requires a holistic approach, involving enforcement, an increase in Off Leash Areas and more robust educational campaigns. No one approach alone achieves the goal of better compliance, but in other areas around the country, cities have seen results by improving efforts in all three areas. Please note that all of the following approaches would need additional resources and partnership with Council on a successful path forward.

A. Enforcement

Increasing ACO II presence in parks within the current staffing level would negatively impact SAS' ability to provide other services across the city and with the current challenges to enforcement would likely not have the impact of increased compliance.

On paper, the Field Services Unit can meet the demand for field services with the current team and maintain 80 hours of park patrols per week. In reality, the ability to meet this requirement is impacted by leave requests, unplanned absences, backfilling other shelter units and competing demands for requests for service in neighborhoods. Increasing the dedicated number of park patrol hours above 80 without an increase in corresponding staff positions, would decrease outreach to pet owners experiencing homelessness, impact the timeliness of responses to resident requests for service and

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June 30, 2022

negatively impact care for animals in the shelter. Alternatively, there are several options that might yield better outcomes, however each requires funding and staff resources to implement.

Options

1. Establish a dedicated SPD team to respond to SAS requests for assistance with uncooperative pet owners.

Currently, when an ACO II observes a dog off leash in a park, the ACO II contacts the pet owner. If the pet owner cooperates, the ACO II provides education. If there's been no history of prior contact, the officer issues a verbal warning. If a prior contact is found, the officer issues a citation. If the ACO II contacts a pet owner who does not cooperate, they attempt to provide education and obtain identification. The pet owner usually refuses to provide identification, so no further action can be taken by the ACO II. When the ACO II calls SPD Patrol, the response times range from 60 to 120 minutes. Without SPD support for difficult situations, the ACO II cannot detain an uncooperative pet owner, or issue a warning or citation leading to no written record of contact with the pet owner.

If SPD officers were engaged with the ACO IIs as a dedicated team with the approval to detain and obtain identification, the ACO II would be better enabled to enforce the leash law. Further, word would spread amongst pet owners that refusing to cooperate with ACO IIs is not an acceptable course of action.

2. Reactivate the pre-pandemic partnership between ACO IIs and Seattle Parks and Recreation (SPR) Rangers.

Prior to 2020, ACO IIs and SPR rangers paired up to patrol parks. While this didn't increase the total number of hours ACO IIs were dedicated to parks, it did increase the number of patrols overall. Related to this option, some consideration could be given to assigning enforcement duties to SPR rangers to address the increasing number of off-leash dogs.

Dedicating a team of ACO IIs and SPR rangers to focus solely on parks enforcement and community education/outreach could have positive impacts. This team would be combined into one unit and independent from the daily assignments/tasks of regular ACO IIs and Parks rangers. They would need SPD support in detaining uncooperative individuals to obtain ID to issue either an official verbal warning or citation. As neither ACO IIs nor Parks rangers have the power to detain individuals, SPD cooperation and commitment to assisting in identifying uncooperative individuals would be vital for this team to succeed.

3. Add a Foster Care Coordinator position to reduce demand for ACO IIs doing Animal Care work.

ACO IIs currently backfill for ACO Is when there a staffing need due to planned or unplanned absences and vacancies. If SAS were to add a Foster Care Coordinator position, animals could be moved out of the shelter and into foster care more quickly, thereby reducing the number of animals to need care at the shelter. The reduction in animals at the shelter would result in a decreased need for ACO IIs to backfill ACO Is as ACO Is are better positioned to manage in-shelter animal care workload.

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B. Off Leash Area Increases

While the city has 489 parks, there are just 14 [Off Leash Areas](#) (OLAs); only one OLA provides water access (Magnuson Park). The lack of available Off Leash Areas could encourage pet owners to take their dogs off leash in regular City parks where other park users are affected. Dog owners consistently share with SAS that OLAs aren't within walking distance and are overcrowded. Further, the limited number of OLAs could be a barrier to residents living in underserved communities, who may need access to public transportation to visit an OLA.

1. Support SPR to utilize public and private funding to increase Off Leash Areas throughout the city.

When compared with other West Coast cities with similar populations, Seattle shows substantial room to grow with Off Leash Area (OLA) Expansion:

2021 West Coast City OLA Comparison

City	2021 Population	# OLAs	OLAs per 100k Residents
Portland	652,000	32	4.9
Seattle	733,000	14	1.9
San Francisco	815,000	53	6.5

While expanding the number of OLAs will not address all problems surrounding leash law compliance, pet owners would have more opportunities to access open areas specifically for off lease dogs. This is especially important as the City increases in density and a larger number of pet owners are living in multi-family buildings with limited access to yard space.

In the 2014 Adopted Budget, Council passed SLI 69-1-B-1 – DPR 2014 Dog Off-leash Area Master Plan requesting SPR work with COLA and other stakeholders to create an OLA Master Plan. The OLA Master Plan scope included identifying a long-term plan for the city's 14 OLAs and their maintenance, continued acquisition and expansion. In 2022, one of the Seattle Park District Maintaining Parks and Facilities funding initiatives is to improve OLAs through maintenance and updates to aging infrastructure.

C. Educational Campaigns

When dogs are off leash in parks, there's a negative impact on SPR property and on parks users whose enjoyment of the open space may be interrupted. On the former, SPR has found high levels of fecal coliform in the soil, destruction of ground nesting bird habitats and danger to marine mammals (seals, sea lions, sea otters) on beaches like Alki. On the latter, off leash dogs have charged and bitten people; approached other parks users whose dogs are leashed, causing anxiety for people and their pets; and have run into the right-of-way and caused bicycle- and car accidents. One approach to increasing compliance with leash and scoop laws is to engage with the public using campaigns showing the very real impacts of off leash pets.

1. Engage with the public on educational campaigns using digital, social media and in-person communications channels.

Digital

Commented [SCA1]: ITD is working to fix some issues with this SPR site link.

Commented [GK2R1]: Looks like it's up 😊

Commented [SA3R1]: @Grove, Kiersten It is! But when you click on the locations within the map to drill down into the actual park, the links are broken :(

Commented [GK4R1]: :(

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SAS could work with SPR to organize a digital communication plan to share the impacts of off leash dogs. The campaign could be linked to the SAS website and posted on social media accounts so it could be shared more widely.

Social Media

SAS could also maintain a consistent presence on social media where information could be disseminated more quickly and could keep up to date with seasonal issues and changes. For example, SAS could use social media to explain how off leash dogs destroy nesting bird habitats during the actual nesting season. Similar messaging would be vital during the seal pupping season to educate the public about the harm off leash dogs pose to marine mammals during low tide.

In-Person Engagement

In-person engagement at town halls, community meetings and events will also get the word out about leash and scoop responsibilities for pet owners. Animal Shelter leadership, trained volunteers and staff are all resources for interacting with and educating the public.

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